Effective Date:
05/01/2024

Background:
Mandatory work registrants are ineligible to participate in CalFresh if they voluntarily quit a job or reduce work hours, without good cause. Household (HH) members who qualify for one of the work registration exemptions listed in section 63-901 are exempt from these disqualification provisions.

Purpose:
This section details the CalFresh policy regarding voluntary quit and reduction of work hours. This section is being updated to add additional good cause reasons.

Policy:
1. Voluntary Quit and Reduction of Work Hours:
Mandatory work registrants are ineligible to receive CalFresh if they voluntarily quit a job of 30 hours or more per week or reduce the number of hours worked in paid employment to less than 30 hours per week without good cause.
Voluntary quit and reduction of work hours are defined as follows:

Term	Definition
Voluntary Quit	Voluntarily resigning or quitting a job of 30 hours or more per week or which provides weekly earnings equivalent to at least the federal minimum wage multiplied by 30 hours.
Reduction of Work Hours	Voluntarily decreasing the number of hours worked in paid employment to less than 30 hours per week.

Job quit or reduction of work hours applies to both applicants and recipients.
- Applicants that voluntarily quit or reduce work hours without good cause within 60 days prior to the date of application will be denied for one, three or six months.
- Recipients that voluntarily quit or reduce work hours without good cause anytime during the certification period will be discontinued for one, three or six months.

When no good cause exists for the voluntary quit or reduction of work hours, the HH member will be disqualified from CalFresh. The length of the disqualification period will apply as follows:

Instances of Non-Compliance	Disqualification Period
First instance	One month
Second instance	Three months
Third instance	Six months

2. Good Cause Determination:
Good cause must be determined when a HH member voluntarily quits a job of 30 hours per week or reduces the number of hours worked to less than 30 hours per week. Verification of good cause is not required, unless questionable.
Good cause includes but is not limited to:
- Circumstances beyond the HH member's control such as:

- Illness.
- Illness of another HH member requiring the presence of the work registrant.
- HH emergency.
- Unavailability of transportation.
- Language barriers.

- Resigning/quitting a job that is considered unsuitable employment as specified in section 63-901.2.
- Discrimination by an employer based on a protected class.
- Work demands or conditions that make continued employment unreasonable.
- Acceptance by the registrant of employment, or enrollment of at least half-time in any recognized school, training program, or institution of higher education that requires them to leave employment.
- Resignations by registrants under the age of 60 which are recognized by the employer as retirement.
- Acceptance of an offer of employment, and due to circumstances beyond the registrant's control, the job falls through or results in employment of less than 30 hours a week.
- Leaving a job in connection with patterns of employment in which workers frequently move from one employer to another such as migrant farm labor or construction work.
- Having no adequate childcare arrangements available for a registrant's children who have reached age six but are under twelve years of age.
- A registrant's workplace rights were violated.
- A registrant provides documentation that the work schedule or work hours are so unpredictable that it does not allow the customer to anticipate the amount of monthly income from the job.

Note: Federal, state, or local government employees who have been dismissed from the job because of participation in a strike have no good cause for leaving employment.

3. Required Actions:

Upon determining that a HH member has voluntary quit or reduced work hours without good cause, the following actions shall be taken:

- Issue a Notice of Action (NOA) informing the HH of the disqualification period being imposed.
- The NOA must explain the following:
  - reason for the denial/discontinuance.
  - the HH members right to reapply at the end of the disqualification period.
  - how to regain eligibility before the disqualification period begins.
  - the right to reapply if the HH member becomes exempt during the disqualification period.
  - the right to request a state hearing.
- The HH member will be discontinued/denied for one, three or six months, depending on the instance.
- For applicants, the first month of the disqualification period is the month in which the HH member is determined ineligible.
- For recipients, the disqualification period will begin the first of the month following the issuance of a timely NOA.
- The disqualified HH member is considered an excluded HH member and ineligible to CalFresh.
- If the HH member leaves the CalFresh HH before the disqualification can be imposed, the period of ineligibility will run continuously beginning with the first of the month after issuing a timely NOA unless the disqualification is ended.

- If the voluntary quit or reduction of work hours occurs in the last month of a certification period or it is determined in the last 30 days of the certification period, the period of disqualification begins the day after the last certification period ends and continues for the length of the disqualification regardless of whether the HH member reapplies for CalFresh.

4. Re-establishing Eligibility:

CalFresh eligibility may be re-established when one of the following occurs:

- The work registrant meets a work registration exemption.
- The disqualification period has ended.

To re-establish eligibility the work registrant must reapply for benefits.

If…	then…
the work registrant is part of an active case,	they must request to be added back to the case and agree to comply with work registration requirements.
the case is closed,	the work registrant must re-apply and agree to comply with work registration requirements.

References:
ACL 23-30; MPP 63-408

Sunset Date:
This policy will be reviewed for continuance on or by 05/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services